

Board of Immigration Appeals order

Appeal dismissed January 13, 2025

The Board considers A.R.M.'s appeal from the October 22 CAT denial. The Board adopts the immigration judge's factual findings and dismisses the appeal. It agrees that A.R.M. credibly described a serious past encounter and that P-7 was admitted as part of the agency evidence.

The Board frames the dispute as whether the judge clearly erred in finding future torture and official acquiescence insufficiently likely. It affirms for the reasons below and orders removal to Kalyra subject to any lawful further review.

Aggregate-risk argument

A.R.M. argues that Unit Four, Harbor League, and registry pathways must be aggregated. The Board states that the immigration judge considered each asserted source and reasonably found no source independently likely to inflict torture. It adds that uncertain contacts among the sources do not change those individual findings.

The Board does not construct a combined pathway, identify overlapping steps, or determine the overall probability that any supported route leads to torture. It concludes that the separate source findings are sufficient to resolve the appeal.

Unit Four and contractor evidence

The Board notes the credited prior detention, elapsed time, lawful departure, absence of a current case document, and formal custody rules. It agrees that renewed Unit Four interest is possible but not shown more likely than not to result in qualifying harm.

It also agrees that the unidentified July speakers and vendor-contact overlap do not prove Harbor League control of officials. The order treats those contractor facts as a separate risk and does not address their asserted role in supplying information to Unit Four.

Registry and relocation

The Board accepts that registry systems can identify returnees and that unsupported queries exist in the expert sample. It finds no evidence of an A.R.M.-specific flag and no proof that every query reaches Merrow. It therefore affirms the finding that registry personnel do not independently pose the required probability of torture.

The Board also cites freedom of movement and the absence of proven nationwide Unit Four surveillance. It concludes that relocation evidence weighs against A.R.M. without further discussion of registered work, household links, or the liaison pathway.

Official acquiescence

The order states that Kalyrian law prohibits torture, provides an inspector hotline and external review desk, and reports discipline. It agrees that these safeguards weigh against official consent or acquiescence. It observes that A.R.M. did not use the national hotline after the municipal complaint.

The order mentions that the complaint reached the regional command but does not address Pel's testimony about the routing code, the absence of an independent interview, or the June 30 “regional response pending” status. It finds no direct senior-official approval and affirms.

Evidence-consideration challenge

The Board states that an adjudicator need not discuss every item of evidence. It finds no clear error in the weight assigned to Varo, Sore, S.M., or Pel and concludes that the decision adequately considered the record. The order does not analyze the source map, complaint sample, or file-specific routing beyond its brief references.

The Board declines to remand for further explanation. It also declines to make additional factual findings, relying on the immigration judge's treatment of the three sources and formal safeguards.

Disposition

The appeal is dismissed. The Board affirms the denial of withholding or deferral under the Convention Against Torture and leaves the conceded removal charge undisturbed. No new evidence was submitted to or considered by the Board.

This disposition is limited to the agency appeal. It does not determine any future court petition, record-certification question, or event after the agency evidentiary record closed. The order is served on both parties on January 13, 2025.

The Board leaves the admitted exhibit list unchanged and does not reopen the hearing. Its dismissal rests on the analysis stated in this order and the incorporated immigration-judge findings, not on an evidentiary default or a missing brief.

Notice and signature

The order advises that any petition for judicial review must comply with the governing statute and rules. The Board expresses no view about jurisdiction, claims processing, or the treatment of material not in the agency proceeding. The parties remain responsible for preserving the agency file and identifying any certification discrepancy through proper procedure.

A Board member signs the eight-page order on January 13, 2025. The order uses A.R.M.'s initials and omits unnecessary personal data.